Harris County District Court

Cause No. 2025-CV-0040

Brandon Knight, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	September 8, 2025
Plaintiff's counsel:	Carlos Fox, Carter & Smith Injury Lawyers

PARTIES

Plaintiff Brandon Knight is an individual residing in Texas who was the driver and sole occupant of a passenger vehicle involved in the collision described below.

Defendant is an automobile insurance carrier authorized to transact business in the State of Texas. Defendant issued the policy that provided uninsured and underinsured motorist coverage and related benefits to Plaintiff at the time of the loss.

FACTS

On May 29, 2024, Plaintiff was lawfully operating a vehicle on a roadway in Baytown, Texas. A second vehicle, operated by an insured of Defendant, moved into the lane occupied by Plaintiff while changing lanes without signaling and without first confirming that the lane was clear. The vehicles sideswiped one another, causing damage to the driver's side of Plaintiff's vehicle and forcing Plaintiff to brake and steer abruptly to avoid a more serious impact.

Plaintiff reported the collision promptly and submitted a claim to Defendant under the applicable coverage. Defendant has not paid the claim in full and has not provided a reasonable explanation for its position.

NEGLIGENCE

The insured driver owed Plaintiff and other motorists a duty to exercise ordinary care when changing lanes, including the duty to check mirrors and blind spots, to signal intent, and to yield to traffic already in the lane. The insured driver breached that duty, and that breach was a proximate cause of the collision and of Plaintiff's injuries. Defendant is liable for the insured driver's negligence to the extent of the coverage owed under the policy and Texas law governing the handling of covered claims.

DAMAGES

As a direct result of the collision, Plaintiff suffered a strain to the lower back, which has caused pain, stiffness, reduced range of motion, and difficulty with daily activities. Plaintiff has incurred medical expenses for evaluation and treatment and will likely require further care. Plaintiff has also lost time from work and has suffered physical pain and mental anguish. Plaintiff seeks recovery of damages in the amount of $125,000.00, together with pre-judgment and post-judgment interest, costs of court, and all other relief to which Plaintiff may be entitled.